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Case Number: 25NNCV00167 Hearing Date: July 7, 2026 Dept: T

David Samkow, et al. vs. Gore Malkhasyan, et al.

Motion for Trial Preference

Moving Party: Plaintiff Teresa Samkow

Responding Party: Defendants Gore Malkhasyan and Edita Malkhasyan

Tentative Ruling: Grant

BACKGROUND

On April 24, 2026, the Court granted Plaintiffs Richard Samkow and David Samkow leave to file a first amended complaint ("FAC") adding Teresa Samkow as a plaintiff. The FAC was filed that same day.

Plaintiff Teresa Samkow ("Plaintiff") now moves for an order granting preferential trial setting under Code of Civil Procedure section 36(a).

Defendants Gore Malkhasyan and Edita Malkhasyan ("Defendant") oppose, and Plaintiff replies.

MOVING PARTY POSITION

Plaintiff argues that a trial preference should be granted under Code of Civil Procedure section 36(a) because Plaintiff is 84 years old and her declining health is such that preference is necessary to prevent prejudicing her substantial interest in the litigation.

OPPOSITION

Defendants initially contend that Plaintiff was added as a party to the case for the purpose of impeding reclassification and depriving Defendants' of their right to move for summary judgment. Defendants also contend that Plaintiff failed to carry her

burden because Plaintiff does not have a substantial interest in the action as a whole. Defendant further contends that Plaintiff has no viable claim and preferential trial setting will violate due process rights.

Defendant alternatively asks the Court to sever Plaintiff's claim and remand it to a limited jurisdiction since it clearly does not meet the jurisdictional limit.

REPLY

Plaintiff initially responds that Defendants demand a medical showing that the statute does not require, as her declaration suffices to establish that her health condition is such that preference is necessary to prevent prejudicing her substantial interest.

ANALYSIS

I. Legal Standard

"A party to a civil action who is over 70 years of age may petition the court for a preference, which the court shall grant if the court makes both of the following findings: (1) [t]he party has a substantial interest in the action as a whole; and] (2) [t]he health of the party is such that a preference is necessary to prevent prejudicing the party's interest in the litigation." (Code Civ. Proc. § 36, subd. (a).)

A motion made under Section 36(a) "may be supported by nothing more than an attorney's declaration 'based upon information and belief as to the medical diagnosis and prognosis of any party.' [Citation.]" (Fox v. Superior Court (2018) 21 Cal.App.5th 529, 534; see Code Civ. Proc. § 36.5 ["An affidavit in support of a motion for preference under subdivision (a) of Section 36 may be signed by the attorney for the party seeking preference based upon information and belief as to the medical diagnosis and prognosis of any party"].) The affidavit may also consist entirely of hearsay and conclusions. (Fox, supra, 21 Cal.App.5th at p. 534.)

If the court makes the requisite finding of fact on a motion for preference under Section 36(a), the court has no discretion to deny the motion due to the use of the word "shall" in the statute. (See Peters v. Superior Court (1989) 212 Cal.App.3d 218, 224-25; see, also, Rice v. Superior Court (1982) 136 Cal.App.3d 81, 89-94.) "Failure to complete discovery or other pre-trial matters does not affect the absolute substantive right to trial preference for those litigants who qualify for preference under subdivision (a) of section 36." (Swaithes v. Superior Court (1989) 212 Cal.App.3d 1082, 1085 ("Swaithes").) "The trial court has no power to balance the differing interests of opposing litigants in applying the provision." (Ibid.)

The courts have not decided on the due process implications of Code Civil Procedure section 36. (Peters v. Superior Court (1989) 212 Cal.App.3d 218, 227.) Although the Swaithes court briefly acknowledged that trial preference may operate to truncate the discovery rights of other parties, the provisions of section 36 remain mandatory. (Swaithes, supra, 212 Cal.App.3d at p. 1086.)

II. Discussion

As an initial matter, the Court notes that Plaintiff declares that her date of birth is November 16, 1947. (Samkow Decl. ¶ 3.) Given this date of birth, the Court finds that Plaintiff satisfies the threshold age requirement in seeking a trial preference under Section 36(a). Moreover, given the nature of the FAC and the nuisance claim that Plaintiff alleges therein, the Court finds that Plaintiff has a substantial interest in the action as a whole.

As to Section 36(a)'s remaining requirement, the Court finds that Plaintiff's health is such that a preference is necessary to prevent prejudicing her interest in the litigation. The declaration of Plaintiff submitted in support of this motion shows that Plaintiff is 78 years old and is suffering from chronic arthritis, chronic iron deficiency that caused her hospitalization in 2013, respiratory difficulties from her prior history of tobacco use, blurred eyesight, and worsening cognitive decline. (Samkow Decl. ¶ 6.) The declaration further sets forth several examples of Plaintiff's functional limitations in her daily life, including her joint pain and increasing fatigue. (Id. ¶ 8.) The declaration of her counsel, Luke Jackson, also provides additional evidentiary support of her current health condition. (Jackson Decl. ¶¶ 5-7.)

In opposition, Defendants challenge the viability of Plaintiff's declaration as evidence of Plaintiff's current health being such that a preference is necessary to prevent prejudice against her substantial interest in the action. However, as "a motion under subdivision (a) may be supported by nothing more than an attorney's declaration," the Court finds that Plaintiff's declaration and her counsel's declaration provide sufficient proof of her current health. (Fox, supra, 21 Cal.App.5th at p. 534; see id. ["The standard under subdivision (a), unlike under subdivision (d), which is more specific and more rigorous, includes no requirement of a doctor's declaration. To the contrary, a motion under subdivision (a) may be supported by nothing more than an attorney's declaration ..."].)

Though Defendants also contend that Plaintiff failed to show that she is suffering from a terminal condition that would necessitate a trial preference, the Court of Appeal in Fox made clear that "[t]he issue under subdivision (a) is not whether an elderly litigant might die before trial or become so disabled that she might as well be absent when trial is called." (Fox, supra, 21 Cal.App.5th at p. 534.) Rather, "[p]rovided there is evidence that the party involved is over 70, all subdivision (a) requires is a showing that that party's 'health ... is such that a preference is necessary to prevent prejudicing [her] interest in the litigation.'" (Id. [quoting Code Civ. Proc. § 36, subd. (a)], italics in original.) Nor do the due process concerns raised by Defendants overcome Section 36(a)'s mandatory relief once the requisite showing is made. (Pabla v. Superior Court (2023) 90 Cal.App.5th 599, 604, fn. 5 [quoting Miller v. Superior Court (1990) 221 Cal.App.3d 1200, 1204] ["Thus, relevant precedent upholds the absolute command of section 36(a) in light of its plain meaning, despite recognition that in certain instances there are strong countervailing considerations—deriving from principles of efficient trial court management; from fairness and due process to other litigants; and from divergent public policy or statutory contexts in which the section 36(a) mandate may be difficult, impractical, or impossible to realize."].)

Accordingly, the Court finds that Plaintiff's health is such that a preference is necessary under Section 36(a). Thus, as Plaintiff has met the requisite standard for seeking a trial preference under Section 36(a), preference must be granted without any weighing of interests, including the due process concerns raised in opposition. (See Fox, supra, 21 Cal.App.5th at p. 535 ["Where a party meets the requisite standard for calendar preference under subdivision (a), preference must be granted. No weighing of interests is involved."].)

Therefore, the motion for trial preference is granted.

RULING

Plaintiff Teresa Samkow's Motion for Trial Preference is GRANTED.

The Court also reminds Plaintiff that it is incumbent on her to expedite the completion of discovery during this shortened statutory period.